

## 26SMCV00515 26SMCV00515

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-05

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Case Number: 26SMCV00515 Hearing Date: August 5, 2026 Dept: M

CASE NAME: Scapa v. MDRCA

Properties, LLC, et al.

CASE NO.: 26SMCV00515

MOTION: Motion to Compel Subpoena Decus Tecum

HEARING DATE: 8/5/2026

Legal

Standard

Personal service of a deposition

subpoena obligates the production of whatever documents or things are specified in the subpoena and to appear in any proceedings to enforce discovery. (CCP § 2020.220(c).) Under CCP section 1987.1(a), "If a subpoena requires ... the production of ... documents, [or] electronically stored information ..., the court, upon motion reasonably made by any person [including a party] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders." The court may also "make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (CCP § 1987.1(a).) If a nonparty disobeys a deposition subpoena, the subpoenaing party may seek a court order pursuant to CCP section 1987.1 compelling the nonparty to comply with the subpoena within 60 days after completion of the deposition record. (CCP § 2025.480(b); see *UnzippedApparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127.) The motion shall be accompanied by a

meet and confer declaration under Section 2016.040. (Id.)

Sanctions are available under both CCP sections 1987.2, 2020.220, 2025.480. CCP § 1987.2 states: “[T]he court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney’s fees, if the court finds the motion was made or opposed in bad faith or without substantial justification . . .” CCP § 2025.480(j) states: “The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” CCP § 2020.240, “[a] deponent who disobeys a deposition subpoena in any manner described in subdivision (c) of Section 2020.220 may be punished for contempt under Chapter 7 (commencing with Section 2023.010) without the necessity of a prior order of court directing compliance by the witness. The deponent is also subject to the forfeiture and the payment of damages set forth in Section 1992.”

As a general rule, all unprivileged information that is relevant to the subject matter of the action is discoverable if it would itself be admissible evidence at trial or if it appears reasonably calculated to lead to the discovery of admissible evidence. (CCP § 2017.010; Schnabel v. Superior Court (1993) 5 Cal.4th 704, 711.) Information is relevant if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement. (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546.)

## ANALYSIS

Plaintiff Jeffry Scapa moves for an order compelling third-party deponent Dominick Rhea (“Rhea”) to comply with the deposition subpoena for personal appearance and production of documents and things personally served on him. Plaintiff also seeks monetary sanctions against Dominick Rhea, in the amount of \$5,202.25.

On March 19, 2026, Plaintiff caused a Deposition Subpoena for Personal Appearance and Production of Documents and Things to be issued and personally served upon Rhea, commanding his appearance and production of documents at a deposition set for April 16, 2026, at 11:00

a.m. at 2603 Main Street, Irvine, California 92614. (Mase Decl., ¶¶ 2-3, Exs. A, B.) The Subpoena commanded the production of several categories of documents bearing directly on the central question in this action, such as the identity of the persons in possession of the Subject Property and the basis (if any) for their claimed right of occupancy. (Ibid.) Rhea failed to appear at the deposition on April 16, 2026. (Mase Decl., ¶ 6; Scapa Decl., ¶ 7.) On the morning of April 16, 2026, Rhea sent a text message to Scapa stating, in relevant part, that he “will not be able to make today’s deposition in Irvine.” (Scapa Decl., ¶ 4.) Rhea has not produced any of the documents demanded, has not made himself available for a continued deposition, and has not otherwise complied with the Subpoena. (Mase Decl. ¶ 7; Scapa Decl. ¶ 8.) Rhea has not opposed and therefore failed to justify his failure to attend his deposition.

Accordingly, the motion is GRANTED.

Rhea shall appear personally at the offices of The Ryan Firm, A Professional Corporation, 2603 Main Street, 1st Floor Conference Center, Irvine, California 92614, for deposition as noticed by Plaintiff no later than 20 days after service of this Order on Rhea or at such other date, time, and location as Rhea and Plaintiff may agree in writing. At or before the deposition, Rhea shall produce the documents and things described in Attachment 3 to the Subpoena. Plaintiff shall serve a copy of this Order on Dominick Rhea by personal service. Sanctions are imposed in the reduced, total amount of \$3,627.25 against Rhea, inclusive of costs. Sanctions are payable to Plaintiff’s counsel of record within 30 days.